



EVALUETOR **USAGE** **AGREEMENT**

For Canopy

This documents describes the specifics of this Evalueter implementation for Your organization and supersedes the Evalueter General Terms and Conditions also applicable to this engagement.

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Evaluator Usage Agreement

This agreement **Evaluator Usage Agreement (“Agreement”)** is entered into, to be effective as of **01-08-2014 (“Start Date”)**, by and between

CANOPY B.V. located at Papendorpseweg 93, 3528 BJ Utrecht, The Netherlands (**“Subscriber”**) registered at chamber of commerce under number: **30132762** and

Evaluator B.V. located at Boompjes 680, 3011 XZ Rotterdam, The Netherlands (**“Service Provider”**) registered at chamber of commerce under number: **52396126**.

This agreement will be governed by the Evaluator General Terms and Conditions unless expressly provided for in this Agreement, in the event of a conflict between the provisions contained in the Evaluator General Terms and Conditions and those contained in this Agreement, the provisions contained in this Agreement shall prevail.

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1. DEFINITIONS

"Affiliate" means any entity which directly or indirectly controls, is controlled by, or is under common control with the subject entity. "Control," for purposes of this definition, means direct or indirect ownership or control of more than 50% of the voting interests of the subject entity.

"Evaluator Usage Agreement (EUA)" means the documents for placing orders hereunder, including addenda thereto, that are entered into between Subscriber and Service Provider or any of Service Provider Affiliates from time to time, including addenda and supplements thereto. By entering into an EUA hereunder, an Affiliate agrees to be bound by the terms of this Agreement as if it were an original party hereto. EUA shall be deemed incorporated herein by reference.

"Purchased Services" means Services that Subscriber or Subscriber Affiliates purchase under an EUA.

"Services" means the products and services that are ordered by Subscriber under an EUA and made available by Service Provider online via the customer login link and/or other web pages designated by Service Provider, including associated offline components. "Services" exclude Non-Evaluator Applications.

"Users" means individuals who are authorized by Subscriber to use the Services, for whom subscriptions to a Service have been ordered, and who have been supplied user identifications and passwords by Subscriber (or by Service Provider at Subscriber request). Users may include but are not limited to Subscriber's employees, consultants, contractors and agents, and third parties with which Subscriber transact business.

"Commencement Date" is the date as of which the services will be made available for the Users.

"Your Data" means all electronic data or information submitted by Subscriber to the Purchased Services.

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2. Purchased Services and Related Fees

2.1. Evaluator Cloud Services

This Agreement will make User Subscription(s) effective for the following Services:

Nr.	Description	# Users	Monthly Fee
1.	Base subscription Evaluator Cloud Services - Contract Management - Relationship Management - Service Management - Improvement Management	50	€5.000,-
2	Additional user in addition to Base users	1	€75,-

All prices are exclusive of VAT.

Restrictions.

Subscriber is permitted to give access to the Services by providing User Subscriptions to End-users of their business relations (Clients and/or Suppliers).

2.2. Storage Fees

Each User has 1 GB Storage available to store Your Data, this storage will come available as one (1) storage pool where this storage will be shared amongst all users. Only when this total storage pool is exhausted additional storage charges will apply.

Nr.	Description	GB	Monthly Fee
1.	Initial Storage per User (included in Service Fee)	1	€0,--
2.	Additional Storage	1	€ 2,50

2.3. Support and Development Services

During and after the initial Evaluator implementation project, Subscriber may from time to time require Implementation or Enhancement support (which will be mutually agreed upon) from Service Provider. Such activities would be jointly agreed as additional projects or on a time and material bases.

Nr.	Description	Day Rate	
1.	Implementation Support Consultant	€	1.700,--
2.	Project Manager	€	1.400,--
3.	Enhancement Developer	€	1.200,--
4.	Evaluator Administration	€	950,--
5.	Car Travel allowance per kilometre	€	0,40

These prices are exclusive of VAT, travel and expenses.

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3. Service Desk

The Service Desk will be available during regular business hours (9:00 – 17:00 hours Central European Time during weekdays). Subscriber is responsible for providing first-line end-functional support. Subscriber will assign expert user(s) and system administrator(s) who will communicate with Providers Service desk in accordance with the following Service Levels.

3.1. Incident management

The Service Desk will assess incident reports on being in scope of the Purchased Services. If not, this is reported back to originator of the call and Subscriber's designated system administrator. If it is assessed to be a genuine and in scope incident, it will be classified in either one of two categories:

Level 1 – High;

Critical production issue affecting most or all users. Major functionality impacted or system unavailable with no workaround available (i.e. URL not working, pages not working, etc.).

For a **level 1** incident: We shall start resolution immediately after receiving the incident report.

Level 2 – Medium;

Bug affecting some but not all Users. Short-term workaround is available (i.e. governance team site not available, management report not loading, etc.).

For a **level 2** incident: resolution will start as soon as possible, but at the latest 4 business hours after receiving the incident report.

Actual resolution time will depend on the nature of the incident. A resolution may consist of a fix, workaround or other solution in Our reasonable determination.

3.2. Service Requests

Service requests might be inquiries regarding a routine technical issue, or a password reset request.

We will start handling the service request as soon as possible, but at the latest 4 business hours after receiving the service request.

Other requests for changes to the Contracted Services are not part of the standard services and will be handled as a change request.

3.3. Change Requests

Subscriber may from time to time submit Change Requests to the Service Desk.

Examples of change requests include, but are not limited to:

- Changes to a standard site;
- Development of a new non-standard management report;
- Development of new functionality.

Received change request are first estimated and priced by Us and proposed to You for approval. After formal approval they will be developed and implemented.

Not all change requests can be granted by Us, in particular when a change request might undermine the integrity of the system or the proper working of the Purchased Services.

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4. URL for Services

The Services will be made available on the following Uniform Resource Locator (URL):

5. Service commencement

5.1. Commencement Date.

Services will commence on 01 December 2014.

6. Signature

Executed on the dates set forth below by the undersigned authorized representative of **Subscriber** and **Service Provider** to be effective as of the **Commencement Date**.

For Canopy (SUBSCRIBER)

Signature:

Name:
Title:
Date:

For Evaluator B.V. (SERVICE PROVIDER)

Signature:

Name:
Title:
Date: